County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED

AUG 11 2026

REGISTRAR OF VOTERS
COUNTY
By [redacted] Deputy

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: RTM

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

SECTION 1: ARGUMENT INFORMATION

Measure Letter RTM (if available – letters will be assigned after 5:00 p.m. on E-88)

Select the Type of Argument you are Filing

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent Rebuttal to Argument in favor (opponent)

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** RTM being submitted. I oppose this measure.

REBUTTAL TO ARGUMENT IN FAVOR OF MEASURE RTM (Regional Transit Measure)
For submittal to Santa Clara County ROV

[argument starts here]

Stop this Gigantic New Sales Tax!

This $14,000,000,000 Regional Transit Measure SALES TAX makes Bay Area life LESS AFFORDABLE.

Our cost of living is *too high already.* This tax would worsen it:

- Gas, groceries, rent, utility prices keep rising.
- We'd ALL pay this tax DAILY, on most purchases.
- Sales tax hikes add costs, aggravating the inflation problem.
- *Necessities are taxed*: prepared **food, clothing**, pet food, over-the-counter **medicines**.
- **Our low-income neighbors, seniors, students, the disabled, will suffer terribly.**

Santa Clara County's SALES TAX rate will rise to at least 10.25%.

- Imagine forfeiting at least $1.02 tax for every $10.00 of prepared food — $102.50 for $1,000 smartphones!

Don't trust BART or VTA with more of your money!

- They're **grossly mismanaged**:

  In June, Santa Clara County's Civil Grand Jury found **VTA's management** of BART's $13,000,000,000 extension **faces huge cost overruns**, and suffers from **weak board oversight.**

  VTA has a plan to divert our money to "bailout" that fiasco.

- Our sales taxes for VTA already total more than $1 Billion/year.

  VTA hands tens of millions to BART.

  They want more!

- Since 2019, the major transit agencies' **ridership fell 51%,** yet **expenses climbed 28%!**
- BART and VTA gave pay/benefits above $250,000 to 539 and 123 employees, respectively, in 2024. This TAX picks our pockets to fill theirs.
- "Oversight"? Impotent.
- Instead of demanding another BILLION dollars/year from us, **transit agencies must better use existing taxpayer money**.

  Fixes before funding!

  Don't award them more money until they stop their **wasteful spending.**

Sales taxes EXCEEDING 10.2% throughout Santa Clara County? ***Outrageous!***

Vote *NO!*

NoNewTransitTax.com/Solutions
SVTaxpayers.org

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[argument ends here]

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FILED
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REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

PRIMARY ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of **their** knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

PLEASE NOTE: If the primary argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Mark W.A. Hinkle

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] Morgan Hill CA 95037

* Email Address: [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Mark W.A. Hinkle
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: President: Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organ[redacted]urposes of submitting an argument:
	[redacted]
	ROV [redacted] **GNATURES** (signatures will be redacted prior to posting online)